

Court No. - 32

Case :- WRIT - C No. - 23318 of 2018

Petitioner :- Sandeep Saxena

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Siya Ram Verma, Bhawna Verma

Counsel for Respondent :- C.S.C., Chandan Agarwal, Ramendra Pratap Singh

Hon'ble Shashi Kant Gupta, J.

Hon'ble Rajiv Gupta, J.

Heard learned counsel for the petitioner, learned Standing Counsel and Sri Chandan Agarwal, learned counsel appearing for Electricity Department.

This writ petition has been filed by the petitioner, inter alia, for the following relief:

(a) To issue a writ, order or direction in the nature of mandamus directing the concerned respondent authorities to provide corrected Electricity Bill of petitioner regarding electricity connection no. 2707355000 for the period of 1.1.2011 to 12.1.2017 on the basis of load sanctioned to the petitioner and meter reading upto the date of disconnection by correcting the increased load unnecessary behind the back of the petitioner and to provide corrected bill for the aforesaid period and to accept the same in easy instalments according to financial capacity of the petitioner in sufficient interval of time without any unnecessary charges and also to restore the aforesaid connection forthwith.

(b) To issue, order or direction in the nature of mandamus restraining the respondents not to insist any proceedings against the petitioner regarding alleged outstanding amount of electricity dues amounting Rs. 1,19,740/- plus other charges and also not to use any coercive measure against the petitioner.

Learned counsel appearing for the Electricity Department at the outset states that the petitioner has a remedy under Section 6.5 of Electricity Supply Code, 2005 to ventilate

his grievances.

In view of above, the writ petition is disposed of with a direction to the petitioner to approach the respondent no. 4, the Executive Engineer E.U.D.D.-III Patel Nagar, Ghaziabad by filing an application/representation for redressal of his grievances within three weeks from today along with a certified copy of this order enclosing therewith a copy of the writ petition and its entire Annexures and, if any such application/representation is made, the said authority shall make all endeavours to consider and decide the same in accordance with law expeditiously preferably within three months from the date of receipt of the said representation.

It is made clear that this Court has not expressed any opinion on the merits of the case.

Order Date :- 11.7.2018

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